

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

20. S-CV-0056809 Ones, Christine v. City of Lincoln

Petitioner is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition for Relief Under the Government Claims Act

Petitioner moves for an order relieving her from the requirements of Government Code section 945.4 on her personal injury claim. Respondent opposes the petition.

Preliminarily, the petition appears to argue both that petitioner timely submitted her claim to the City of Lincoln and that this claim substantially complied with all requirements while also arguing the court should relieve petitioner from submitting her claim to the City of Lincoln because of "mistake, inadvertence, surprise, or excusable neglect." However, it is only the latter issue that is before this court on this petition. This court has no jurisdiction on a petition for relief from the claims presentation requirement to determine whether petitioner's claim was timely or that it substantially complied with all requirements. (*Ngo v. County of Los Angeles* (1989) 207 Cal.App.3d 946, 951.) This court therefore presumes but does not find the claim was untimely and analyzes whether petitioner is entitled to relief from the requirements of Government Code section 945.4. For the same reason, respondent's argument lacks merit that this petition necessarily fails because claim presentation was timely; that issue is not before this court on this petition.

In order to initiate an action for money or damages against public entities, a claim must be presented in accordance with the requirements in Government Code sections 900 and 910. (Gov. Code, § 945.4.) Government Code Section 911.2 provides, "A claim relating to a cause of action for . . . injury to a person . . . shall be presented . . . not later than six months after the accrual of the cause of action." (Gov. Code, § 911.2, subd. (a).) However, if a claim is not timely presented, the injured party may apply to the public entity for leave to present the claim. (*Id.*, § 911.4, subd. (a).) This "application shall be presented to the public entity . . . within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim." (*Id.* at subd. (b).)

If the public entity denies the application for leave to file an untimely claim, the injured party may petition the court for an order relieving him or her of the claim requirements. (*Id.*, § 946.6, subd. (a).) This application "shall be filed within six months after the application to the board is denied or deemed to be denied . . ." (*Id.* at subd. (b).) Government Code section 946.6 is a remedial statute that is to be liberally construed. (See, e.g., *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 273–

74.) It is mandatory for the court to relieve the injured party “from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed [one year after the accrual of the cause of action] and was denied or deemed denied pursuant to Section 911.6” (Gov. Code, §§ 946.6, subd. (c); 911.4, subd. (b).) Moreover, a petitioner must show by a preponderance of the evidence one or more of the following:

- (1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.
 - (2) The person who sustained the alleged injury, damage, or loss was a minor during all of the time specified in Section 911.2 for the presentation of the claim.
 - (3) The person who sustained the alleged injury, damage, or loss was a minor during any of the time specified in Section 911.2 for the presentation of the claim, provided the application is presented within six months of the person turning 18 years of age or a year after the claim accrues, whichever occurs first.
 - (4) The person who sustained the alleged injury, damage, or loss was physically or mentally incapacitated during all of the time specified in Section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time.
 - (5) The person who sustained the alleged injury, damage, or loss was physically or mentally incapacitated during any of the time specified in Section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time, provided the application is presented within six months of the person no longer being physically or mentally incapacitated, or a year after the claim accrues, whichever occurs first.
 - (6) The person who sustained the alleged injury, damage, or loss died before the expiration of the time specified in Section 911.2 for the presentation of the claim.
- (Gov. Code, § 946.6, subd. (c)(1)–(6); *Santee v. Santa Clara County Office of Educ.* (1990) 220 Cal.App.3d 702, 717.)

Here, petitioner contends Government Code section 946.6(c)(1) applies as the failure to timely submit a claim was through petitioner’s “mistake, inadvertence, surprise, or excusable neglect” and respondent would not be prejudiced if the instant petition was granted. “The showing required of a petitioner seeking relief [to file a late claim] because of mistake, inadvertence, surprise or excusable neglect . . . is the same as required under section 473 of the Code of Civil Procedure.” (*Nilsson v. City of Los Angeles* (1967) 249 Cal.App.2d 976, 979.) If petitioner meets their burden of showing mistake, inadvertence, surprise, or excusable neglect, the burden shifts to respondent to demonstrate prejudice. (*Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1386.) If, however, a petitioner falls short of their burden, prejudice is irrelevant and the petition must be denied. (*Dept. of Water & Power v. Super. Court* (2000) 82 Cal.App.4th 1288, 1297.)

Here, the application for late filed claim was submitted within one year of when the cause of action accrued and was therefore timely. This petition was filed within six months of when respondent denied the late-claim application and is likewise timely. In support of her burden, petitioner presents the declaration of counsel Sandra Duritza who presents several exhibits, including several pleadings in the related personal injury case, the notice of claim, respondent's rejection, application for leave to present the late claim and rejection. However, no evidence is submitted to support petitioner's burden of showing mistake, inadvertence, surprise, or excusable neglect. Petitioner falls short of her burden of proof so the burden does not shift to respondent to show prejudice.

Based on the foregoing, the motion is denied.

21. S-CV-0056823 In Re the Petition of US Night Vision Corp.

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Second amended petition for: 1) court supervision of voluntary winding up proceeding; and 2) removal of John Barbieri as a director of US Night Vision corporation

Petitioners Chris Byrd and US Night Vision corporation petition this court for court supervision of voluntary winding up proceeding and removal of John Barbieri as a director of US Night Vision corporation. Respondent John Barbieri opposes the petition substantively and also objects on the grounds the operative second amended petition, filed March 12, 2026, was not properly served on respondent, is not accompanied by evidence, and suggests a future memorandum will be filed which does include supporting evidence.

Based on the foregoing procedural deficiencies, the second amended petition is denied without prejudice.

22. S-CV-0056825 In Re the Petition of Forward Financing LLC

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition to confirm arbitration award

The unopposed petition to confirm the arbitration award is granted as prayed. The court confirms the final award entered on November 10, 2025. Judgment is entered in favor of Forward Financing LLC, and against David Miller dba Customer Door Specialists; David Miller, an individual for \$35,260.00 in principal, and \$618.91 in court costs, for a total judgment amount of \$35,878.91.